

**NATIONAL RAILROAD ADJUSTMENT BOARD
FIRST DIVISION**

**Award No. 31402
Docket No. 50982
23-1-NRAB-00001-210261**

The First Division consisted of the regular members and in addition Referee Jeanne M. Vonhof when award was rendered.

PARTIES TO DISPUTE: (SMART – Transportation Division
(Union Pacific Railroad Company)

STATEMENT OF CLAIM:

“We present on appeal the request of Trainmen JF Branscomb (Claimant) EID XXXXXX, Los Angeles Service Unit, for removal of Permanent Dismissal status, reinstatement to service with seniority unimpaired, compensation for all time lost and restoration of vacation credits until he is returned to service. Claim includes payment for all wage equivalence to which Claimant is entitled, such as medical/dental benefits and for any monetary loss for such coverage while dismissed from service.”

FINDINGS:

The First Division of the Adjustment Board, upon the whole record and all the evidence, finds that:

The carrier or carriers and the employee or employees involved in this dispute are respectively carrier and employee within the meaning of the Railway Labor Act, as approved June 21, 1934.

This Division of the Adjustment Board has jurisdiction over the dispute involved herein.

Parties to said dispute were given due notice of hearing thereon.

The Claimant became employed by the Carrier on August 15, 2005. He was dismissed from service on January 19, 2021, pursuant to the Carrier’s new TE&Y

points-based Attendance Policy. The Claimant did not have an active history of attendance violations predating the current review period.

Pursuant to a Notice of Investigation and after postponements, an investigatory hearing was held on January 12, 2021. As of the date of the Notice, the Claimant was withheld from service. By letter dated January 19, 2021, the Claimant was notified of his dismissal, as follows:

“While employed as a SWITCHMAN (ONE) with Union Pacific Railroad, you failed to protect your employment on a full-time basis through layoffs and/or failure to report for service between 08/07/2020 and 11/04/2020.”

According to the Carrier, the Claimant laid off on the following dates and times:

Date	Time	Layoff Type	Points Assessed
Monday 09/14/2020	04:16 PT	LK	8
Thursday 10/15/2020	06:25 PT	LW	15
Friday 10/30/2020	05:16 PT	LW	15
Monday 11/02/2020	04:40 PT	LW	15
Tuesday 11/03/2020	04:41 PT	LK	8
Wednesday 11/04/2020	04:41 PT	LK	8
Total Points Assessed			69

The Carrier’s points-based TE&Y Attendance Policy was implemented on March 1, 2020, replacing its earlier policy. The new policy is a “no-fault” policy with points assessed for a layoff of any type, with certain exceptions for approved leave, until an employee reaches the threshold of 28 points accumulated in a 90-day rolling period. Upon surpassing the threshold, employees are removed from service pending a formal investigation and subject to dismissal. The point assessment is tied to the type of layoff, the day of week it occurs, and whether it occurs on a holiday. Employees can monitor their point totals via the Carrier’s web-based system. Assessed points may be appealed through a dispute mechanism specific to the policy. The Claimant unsuccessfully challenged each of his assessed layoffs through the policy’s appeals system. The policy also provides for a “credit period” during which an employee may reduce his/her point

total, within certain parameters, but employees like the Claimant who are on a fixed schedule with regular days off may not take advantage of the credit period system.

The Carrier argues that there is substantial evidence in the record that the Claimant was not available to work his assignment and failed to protect that assignment on a full-time basis as required. Employees are expected to report to work and fulfill the requirements of the job in exchange for their compensation. The Claimant did not meet that expectation and, therefore, was appropriately charged with violating the policy. The Carrier had a managerial right to implement the new policy, and to hold its employees accountable under the policy, and did not act in an arbitrary or capricious manner in doing so.

The Carrier objects to the Organization's claims that the assessment of points constitutes discipline and that the policy itself violates its bargained agreements by failing to afford the Claimant a due process hearing. The Carrier's assessment of points under the policy are, instead, "reasonable layoffs" to which the Claimant was entitled without being questioned as to their necessity or legitimacy. Once the 28-point threshold is exceeded, as occurred here, employees are afforded their full rights to a due process hearing as required by the Discipline Agreement, the Carrier asserts.

The Carrier states that it continues to take into consideration employee's explanations and documentations for layoffs and has extended leniency and mitigated discipline. The point system itself, contends the Carrier, has a built-in mechanism that takes into consideration employees' reasonable needs for layoffs without the need for a manager to bless or excuse their legitimacy. The new policy establishes the "tipping point" where layoffs become excessive and defines, by default, what are considered "frequent" layoffs, rather than managers making those assessments on a case-by-case basis. The new policy also affords transparency so that employees can evaluate where they stand at all times in terms of point accumulations. Points roll off every 90 days, effectively clearing the slate for employees to lay off.

The Carrier also disputes the Organization's contention that the new policy violates the Leave of Absence provision in the parties' Agreement or the Automatic Mark-up Interpretation Agreement and its side letter. The new policy's language makes clear that approved leave days are not considered an absence for the purpose of accumulating points. The Automatic Mark-up Agreement makes clear that the Carrier is not obligated to automatically approve an employee's request to lay off, but may

determine leave approval considering the nature of the request; the employee's needs; the Carrier's obligations and needs; and applicable legal or bargaining agreement requirements. Similarly, while the side letter to the Automatic Mark-up Agreement expresses the parties' commitment to work together to avoid discipline due to serious illness or unexpected hospitalization of the employee or their family members, the language requires "the involved employees provide valid documentation for themselves or their family member(s) regarding the incident(s) or matters." Thus, the Carrier argues that the new policy does not violate any of the parties' Agreements.

The Carrier was under no affirmative obligation to offer the Claimant a leave of absence and, importantly, the Claimant did not seek one. And although the Claimant made representations at hearing that he had undertaken new initiatives to ensure that care would be provided to his ailing mother in the future to reduce his need to lay off, those initiatives should have been undertaken before the Claimant reached the 28-point threshold. The Carrier asserts that even if the Claimant's layoffs were characterized as LK's rather than LW's, the Claimant still would have exceeded the 28-point threshold.

The Carrier asserts further that the General Manager is the highest designated official as contemplated by the parties' Discipline Agreement, and properly acted as the reviewing official and assessed discipline in this case. The Carrier maintains that the Claimant was afforded a full, fair, and impartial hearing and accorded all due process to which he was entitled under the parties' Agreement.

As an initial procedural matter, the Organization argues that the discipline was assessed by the General Manager and not the Superintendent, as required by the 2006 Discipline Agreement, citing PLB No. 7722, Award No. 28 (Wise).

The Organization argues further that the new no-fault policy is a violation of both employees' procedural rights and their substantive rights under the 2006 Discipline Agreement. The Organization contends that the assessment of points is discipline, and that the policy impermissibly allows the Carrier to discipline or dismiss employees without a just cause determination. The Organization argues that the prior policy, while imperfect, afforded an employee due process by first giving the employee a warning, then three opportunities to alter his or her behavior, with the final charge resulting in dismissal. It maintains that the current policy is an arbitrary "one strike and you're out" policy that is punitive and disregards employees' legitimate needs to lay off from time to time. The Organization also argues that the policy's 28-day "credit period" is a

nullity because credits can be reset to zero when an employee lays off even for a legitimate reason during the credit period.

The Organization contends that the new policy contravenes the language of the parties' Automatic Mark-Up Interpretation Agreement and its side letter because that Agreement contemplates that layoff approvals will be based on the nature of the request. The side letter requires that the parties work together to avoid disciplinary proceedings when employees find themselves in a dilemma when they (or their family members) become extremely ill or hospitalized unexpectedly.

The Organization additionally argues that the policy conflicts with the express language of the Leave of Absence Article in the parties' Agreement. That Article provides, in part, that trainmen who are absent due to sickness or injury will be on an automatic leave of absence. The new attendance policy was ill-timed, the Organization argues, because it was unveiled during the onset of the Covid-19 global pandemic. The Claimant was faced, during the challenges of that pandemic, with a seriously ill and disabled parent who required care and who was particularly vulnerable to the virus. However, the Carrier displayed no empathy towards the employee or his family member's dilemma, according to the Organization, but instead automatically applied the no-fault policy, resulting in the dismissal of a valuable employee who had no history of attendance problems.

The Board finds no merit to the Organization's procedural argument as it relates to the General Manager assessing discipline. The General Manager is the highest ranking official and therefore, is responsible for reviewing the discipline. See, NRAB First Division Award No. 30740 (Halter, 2021).

The Board is not persuaded, however, that the Carrier has demonstrated substantial evidence to support the dismissal of the Claimant based upon application of the no-fault attendance policy. As Referee Moreland stated in PLB No. 6918 Award No. 362 (Moreland):

"The parties' collective bargaining agreement prohibits the Carrier from discipline or discharge of an employee without just cause, stating:

'Employees will not be disciplined without just and sufficient cause as determined by a fair and impartial investigation.'"

Referee Moreland goes on to state,

“Under the new Attendance Policy, the Carrier assesses points to an employee mechanically whenever they lay off from work. When an employee reaches 28 points in a rolling 90-day period, the employee is automatically removed from service without regard for the layoff’s reason. Accordingly, the assessment of points becomes a de facto assessment of dismissal, as it becomes impossible to bifurcate the two. Such a de facto discipline represents the type of disciplinary application restricted by the just cause standard mutually agreed upon by the parties. In short, just cause requires the determination of an unexcused absence *before* attendance discipline is rendered therefor.”

The Moreland decision notes that the Carrier has long administered attendance discipline differently for different types of absences, “recognizing the distinguishing characteristics of each layoff type and its varying severity.” PLB 6918, Award 362. The Employer has retained the same categories of absences in the new policy as under the old. The difference between the two policies, however, is that in the past, discipline had been imposed only “after consideration is given to the subjective circumstances surrounding each layoff...” PLB 6918, Award 362. Under the new no-fault policy, no consideration is given to the circumstances of an employee’s absence before discipline is issued.

Referee Moreland also ruled on whether the credit period in the policy provides adequate opportunity for the Claimant to present his reasons for absence after his dismissal from service is imposed. The Award states,

“The Carrier points out that the Claimant was allowed a formal investigation after his removal from service and the opportunity to discuss the situational circumstances of his layoff(s) at that time. The Carrier’s point is noted; However, the resulting effect hears the employee’s often valid excuse after the removal from service has already occurred and the punitive phase of discipline has commenced.” PLB 6918, Award 362

Imposing discipline before the employee has had any opportunity to present his or her explanation of the events that led to the discipline violates just cause. The Moreland

decision also points out that by discharging employees for a single violation of the attendance policy, the Carrier is treating employees under the new policy more harshly than employees under the old policy, who had the benefit of progressive discipline. In doing so, the Carrier is engaging in disparate treatment of employees in the same bargaining unit for the same or similar conduct, which also violates the tenets of just cause. The Award states,

“Furthermore, the robotically charged employee is terminated for a single violation (reaching 28 points) under the new policy. Such disciplinary haste and newly heightened severity of a single attendance policy violation creates immediate terminations for the type and quantity of layoff(s) which were heretofore not terminable offenses. This evident disparity of now applying termination for a singular attendance policy violation to similarly situated employees is further inconsonant with the just cause standard requiring even handed discipline across the bargaining unit.”

The new Attendance Policy’s no-fault structure does not waive the Carrier’s contractual obligation to demonstrate just cause before termination. Claimant has provided evidence that all of his six layoffs related to providing care for his seriously ill mother. Thus, Claimant, with fifteen years of service to the Carrier, was summarily dismissed under circumstances where a close family member had a well-documented and ongoing serious health crisis. The Claimant had no significant history of attendance infractions and was considered a good employee. He reapplied for FMLA to care for his mother, but was not eligible, for reasons beyond his control. He undertook considerable efforts to reach out to managers and others who might help him navigate the crisis - to no avail. Each of these efforts was set against the backdrop of the first year of a global pandemic that was especially dangerous for the elderly and infirm, like his family member, and complicated the Claimant’s efforts to obtain care for her. The Claimant’s situation, verified by valid documentation, presents the type of attendance dilemma that the parties’ contemplated in the Automatic Markup Agreement, and the Carrier failed to work together with the Organization to avoid discipline, as the Agreement provides.

Under all these circumstances, the Carrier has not demonstrated substantial evidence to support dismissal. The Claimant’s dismissal shall be vacated, he shall be reinstated and made whole for any loss of earnings and benefits from the time that he was withheld from service until returned to service.

AWARD

Claim sustained.

ORDER

This Board, after consideration of the dispute identified above, hereby orders that an award favorable to the Claimant(s) be made. The Carrier is ordered to make the Award effective on or before 30 days following the postmark date the Award is transmitted to the parties.

NATIONAL RAILROAD ADJUSTMENT BOARD
By Order of First Division

Dated at Chicago, Illinois, this 30th day of May 2023.